

## Smt. Poonam Devi @ Bhagwati vs Sh. Gulab Singh on 22 December, 2014

IN THE COURT OF SHRI SANDEEP GARG :  
ADMINISTRATIVE CIVIL JUDGE- CUM- ADDITIONAL  
RENT CONTROLLER (CENTRAL) : DELHI

Petition No. : 322/2002  
Unique ID No : 02401C0114971998

In the matter of:-

1 Smt. Poonam Devi @ Bhagwati,  
W/o. Lachhman Dass,

2 Vikram Singh,  
S/o. Lachhman Dass,  
(Minor through his mother Smt. Poonam Devi  
@ Bhagwati, natural guardian and next friend).  
Both residents of H-55, Mangolpuri, Delhi and  
Village Rampur, PS Jawan, Distt. Aligarh (UP).  
....Petitioners.

Versus

1 Sh. Gulab Singh,  
S/o. Lachhman Dass,  
R/o. H.No. 114, Village Mohammadpur,  
Delhi.

2 The State.  
.....Respondents.

Date of Institution : 28.05.1998

Petition No. 322/2002

1/1

Date of order when reserved : 22.12.2014

Date of order when announced : 22.12.2014

J U D G M E N T :

1 The present succession petition has been filed by the Petitioner namely Smt. Poonam Devi @ Bhagwati for herself and also on behalf of Vikram Singh, being his mother for the grant of Succession Certificate in their favour qua the debts and securities left by Sh. Lachhman Dass, who expired on 01.05.1998 at Delhi. 2 After filing of this petition, notice of filing of this petition was given to the general public by way of publication in the newspaper 'Bandematram' dated 01.11.2014, but none has appeared from general public to oppose or contest the present petition. 3 A reply was filed by respondent no. 1 Gulab Singh, who is claiming to be the son of the deceased Lachman Dass, wherein it was averred that the deceased Sh. Lachman Dass was his father and he is his only legal heir. Petitioner no. 1 never got married with Sh. Lachman Dass, but it was only a friendship between

her and his deceased father. The deceased was already married with Smt. Kashmiri, his mother. Petitioner had filed a petition Under Section 125 Cr.P.C. in the Court of Judicial Magistrate, IInd Aligarh, vide case no. 21/11/91 titled as Punam Vs. Lachman Dass, PS Jawan, Aligarh (UP) for maintenance. Vide order dated 27.08.1992, the court held that the petitioner is not entitled to any maintenance as the marriage of Sh. Lachman Dass with Smt. Kashmiri was subsisting on the date on which she claims to have got married with Sh. Lachman Dass. Deceased was working with DTC at Depot no. 1, Rohini as Cushion Maker having Badge no. 6431 and he is only entitled to service benefits of the deceased.

4 Petitioner filed her replication/rejoinder denying all the averments made by the respondent Gulab Singh. On the contrary, she stated that vide order dated 31.01.1987, deceased obtained a decree of divorce against Smt. Kashmere Devi from the Court of Smt. Sharda Aggarwal, Ld. ADJ. Thereafter, deceased solemnized second marriage with her on 07.06.1987 according to Hindu Rites and Customs and out of her wedlock with deceased, a male child namely Vikram was born.

5 A reply has been filed by respondent no. 3 namely Delhi Transport Corporation where the deceased was employed. As per record, the son of the deceased Sh. Gulab Singh was the only nominee declared by the deceased in respect of his all dues. Three daughters of the deceased namely Kumari Malti, Renu and Sunita were also reflected in the Nomination Form as dependent family members of the deceased.

6 Petitioner filed her replication/rejoinder denying all the averments made by the Delhi Transport Corporation. 7 Petitioner herself deposed as PW□ and stated that the deceased Sh. Lachhman Dass was her husband. He expired on 01.05.1998 and his death certificate is Ex. P□. Besides her, the deceased has left behind a minor son, who is petitioner no. 2 under her natural guardianship. The deceased has also left behind a son namely Gulab Singh from his first wife Kashmiri. Deceased had married her after taking divorce from his first wife. The deceased did not execute any Will during his life time. The deceased was employed with DTC. He has left behind service benefits with the department. The deceased was ordinarily a resident of Delhi.

8 During her cross examination, she has stated that her marriage with deceased solemnized at house of her mother. She does not know the name of the Pandit who performed the ceremony and he has already expired. She had filed a petition Under section 125 Cr.P.C. before the Aligarh court against Lachhman Dass. The court did not grant maintenance to her but passed the order of maintenance in favour of her son Vikram Singh. Sh. Gulab Singh was the only son born from his first wife Smt. Kashmire. Smt. Kashmire was the first wife, who stayed with the deceased at his Mangolpuri house till his death. She had denied the suggestion that she was not married with Lachhman Dass.

9 PW□2 Smt. Chandro Devi, who is stated to be the sister of the deceased deposed that the deceased was employed with DTC as a Cushion Maker. Respondent no. 1 Gulab and petitioner no. 2 Vikram are the LRs of deceased Lachhman Dass. Gulab Singh was born out from the wedlock of the Lachhman Dass with Kashmere and Vikram was born from the wedlock of Lachhman Dass with Poonam @ Bhagwati. Kashmere was divorced by Lachhman Dass. 10 During her cross examination, she stated that Poonam got married with Lachhman Dass at Aligarh. The marriage rites i.e. Seven

steps around the sacred fire not taken in her presence. The petitioner no. 1 Poonam filed a petition against Lachhman Dass for maintenance for herself and for her child. The court declined maintenance to the petitioner no. 1. However, maintenance was granted in favour of petitioner no. 2.

11 On the other hand, defendant Gulab Singh himself deposed as DW□ and stated that he is the son of Late Sh. Lachhman Dass, who died on 01.05.1998 at RBTB Hospital, Kingsway Camp, Delhi. He is the only legal heir of late Sh. Lachhman Dass. Sh. Lachhman Dass was married to his mother, Smt. Kashmiri. Petitioner no. 1 Smt. Poonam has no relations whatsoever with the deceased. She never got married to Late Sh. Lachhman Dass. Sh. Lachhman Dass was already married at the time of alleged marriage of the petitioner and his first wife was alive at that time. Petitioner filed a petition Under Section 125 Cr.P.C. in the court of Judicial Magistrate□I, Aligarh vide Case no. 21/11/91 titled as 'Smt. Poonam Vs. Lachman Dass'. Vide judgment dated 27.08.1992, the said petition was dismissed and it was held that at the time of her alleged marriage, Sh. Lachhman Dass was already married with Smt. Kashmiri, who was alive at that time. Petitioner also filed an application Under Section 127 Cr.P.C. before the same court, but that application was also dismissed by the court. Sh. Lachhman Dass also filed a Divorce petition against Smt. Kashmiri vide HMA petition no. 569/1986 titled as 'Laxman Das Vs. Kashmiri'. Vide order dated 31.01.1987, divorce was granted in favour of Sh. Lachhman Dass.

12 During his cross examination, he stated that he is staying with his mother. He does not know as to whether his father remarried with petitioner no. 1 after getting divorce from his mother. He further does not know as to whether his father had another son besides him. He denied that petitioners resided at H□5, Mangol Puri at ground floor where he was living at the first floor. He had an altercation with the petitioner on the premises that he wanted to shift to the ground floor of the aforesaid house. A case between his mother and the petitioner no. 1 was pending in the court of Sh. Raj Kumar, the then Civil Judge, Delhi around 2□3 years ago. He does not know if petitioner no. 2 Vikram is his step brother. He had no knowledge about any case whereby the maintenance Under Section 125 Cr.P.C. was granted by the court at Aligarh in favour of Vikram. His date of birth is 14.08.1979.

13 Separate statement of Gulab Singh was also recorded in court on 22.09.2014 whereby stated that he has three sisters namely Anju, Manju and Sunita. All these three sisters are married and they are residing at Mangol Puri, Delhi. He does not know their addresses as he has not on talking terms with them.

14 The court has heard the arguments advanced by the ld. counsel for the parties.

15 It is contended by Ld. counsel for the petitioners that the petitioner no. 1 Smt. Poonam Devi @ Bhagwati had got married with Sh. Lachhman Dass. Out of her wedlock with deceased Lachhman Dass, a child namely Vikram Singh, who is also petitioner no. 2 in the present petition, was born and therefore, they are entitled to share in the service dues of the deceased.

16 On the other hand, it is contended by Ld. counsel for the respondent no. 1 that Petitioner no. 1 Smt. Poonam Devi @ Bhagwati had no relation with the deceased Lachhman Dass. There is no evidence regarding alleged second marriage of petitioner no. 1 with the deceased. The petition Under Section 125 Cr.P.C. filed by the petitioner was dismissed holding that the date on which she claims to have got married with Sh. Lachhman Dass, he was already married with Smt. Kashmiri and she was alive at that time. Therefore, she is not entitled to any maintenance. The petitioner had also moved an application Under Section 127 Cr.P.C. which was also dismissed. 17 It is no longer res integra that succession petitions are to be decided summarily. Sec. 373 of the Indian Succession Act provides that a succession petition is to be decided in a summary manner and even if court cannot decide the right to the certificate without determining questions of law or fact which may seem to be too complicated and difficult for determination in a summary proceedings, the Court may nevertheless grant a certificate to the applicant if he appears to be the person having prima facie the best title thereto. Thus U/s. 373 of Indian Succession Act, only prima facie case is to be seen and other questions of law and fact which may be complicated are to be decided by a regular civil court.

In the case of Madhvi Amma Bhawani Amma and others, Appellants Vs. Kunjikutty Pillai Meenakshi Pillai and others, Respondents. AIR 2000 Supreme Court 2301=2000 AIR SCW 2432 it was held that "sub-sec. (3) of S. 373 of Succession Act which deals with procedure for grant of certificate reveals two things, first adjudication for grant of certificate is summary proceedings and secondly if the question of law and fact are intricate or difficult, it could still grant the said certificate based on applicants prima facie title. In other words the grant of certificate under it is only a determination of prima facie title. This as a necessary corollary confirms that it is not a final decision between the parties. So, it cannot be construed that mere grant of such certificate or a decision in such proceeding would constitute to be decision on an issue finally decided between the parties. If that be so the principle of res judicata cannot be made applicable."

18 As per section 373 of Indian Succession Act, 1925 proceedings for grant of Succession certificate are summary in nature and the court can grant succession certificate to a person if he/she appears to have prima facie the best title thereto. From the evidence adduced on record, it is prima facie evident that petitioner no. 1 was living with the deceased as his wife and petitioner no. 2 was born out of relationship between petitioner no.1 and the deceased. Petition Under Section 125 Cr.P.C. filed by the petitioner no. 1 was dismissed on the ground that the date on which she claimed to have got married with the deceased, the first marriage of the deceased with Smt. Kashmiri was already subsisting. However, claim for grant of maintenance filed on behalf of petitioner no. 2 was allowed. In any case, petitioner no. 2 is entitled to succeed the property of the deceased in view of section 16 of the Hindu Marriage Act, 1955. Admittedly, the deceased is also survived by three daughters - Anju, Manju and Sunita, apart from petitioner no. 2 and respondent no. 1. 19 As regards the contention of respondent no. 1 Gulab Singh that he is the nominee in the service record of deceased Lachhman Dass and is therefore, entitled to dues of deceased, the law is well settled that a nominee does not step into the shoes of successor by merely nomination. Reference can be made to the decisions of Hon'ble Supreme Court in the cases of Vishin N. Khanchandani Vs. Vidhya Lachmandass Khanchandani AIR 2000 SC 2747 and in the case of Sarbati Devi Vs. Usha Devi AIR 1984 SC 346. 20 Therefore, the court holds that Petitioner no. 2, respondent no. 1, Anju, Manju and Sunita are entitled to 1/5th share each in the service dues of the deceased Sh. Lachhman Dass, in

terms of affidavit dated 25.05.2007 filed by employer DTC. However, since the entire service dues have already been released by DTC to respondent no. 1, petitioner no. 2, Anju, Manju and Sunita are at liberty to recover their respective shares from respondent no. 1 by availing appropriate remedy. Petition is disposed of accordingly.

File be consigned to Record Room.

Announced in the open court  
on 22.12.2014

(SANDEEP GARG)  
Administrative Civil Judge-cum-  
Additional Rent Controller (Central)  
Delhi

22.12.2014.

Present : Sh. Bharat Singh, Ld. Counsel for the petitioners with petitioner no. 1 in person.

Ms. Anubha Kaushal, Ld. Counsel for respondent no. 1, Gulab Singh.

None for general public despite service by way of publication in the daily newspaper 'Bandematram' dated 01.11.2014.

Final arguments heard.

Vide separate judgment of even date, it is held that Petitioner no. 2, respondent no. 1, Anju, Manju and Sunita are entitled to 1/5th share each in the service dues of the deceased Sh. Lachhman Dass, in terms of affidavit dated 25.05.2007 filed by employer DTC. However, since the entire service dues have already been released by DTC to respondent no. 1, petitioner no. 2, Anju, Manju and Sunita are at liberty to recover their respective shares from respondent no. 1 by availing appropriate remedy. Petition is disposed of accordingly.

File be consigned to Record Room.

(Sandeep Garg) ACJ/ARC (Central) Delhi/22.12.2014